

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
GEORGE A. ADAMS,

Plaintiff,

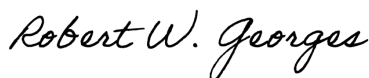
-against-

CITY OF NEW YORK, POLICE OFFICER
EDWARD MALONE SHIELD # 21572, POLICE
OFFICER GENYA ALLEN SHIELD # 931457,
and NYPD Officers JOHN and JANE DOE 1 through
10, individually and in their official capacities (the
names John and Jane Doe being fictitious, as the true
names are presently unknown),

Defendants.
-----X**To the above named Defendants:**

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
February 24, 2022



Robert W. Georges, Esq.
KONTA, GEORGES & BUZA, P.C.
233 Broadway, Ste. 900
York, New York 10279
Tel. (212) 710-5166

SUMMONS

Jury Trial Demanded

Plaintiff designates New
York County as the place
of trial.

The basis of venue is:
CPLR § 504(3)

TO:

ZACHARY W. CARTER
Corporation Counsel of the City of New York
Attorney for Defendant THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

EDWARD MALONE SHIELD # 21572

GENYA ALLEN SHIELD # 931457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
GEORGE A. ADAMS,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER EDWARD MALONE SHIELD # 21572, POLICE OFFICER GENYA ALLEN SHIELD # 931457, and NYPD Officers JOHN and JANE DOE 1 through 10, individually and in their official capacities (the names John and Jane Doe being fictitious, as the true names are presently unknown),

Defendants.
-----X

COMPLAINT

Jury Trial Demanded

Index No.

BASIS FOR VENUE:

CPLR § 504(3)

PLAINTIFF GEORGE A. ADAMS, by PLAINTIFF'S attorney, KONTA, GEORGES & BUZA, P.C. complaining of the defendants, respectfully alleges as follows:

PARTIES

1. PLAINTIFF GEORGE A. ADAMS, is an African American male and has been at all relevant times a resident of NEW YORK County in the City and State of New York.

2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, Defendants EDWARD MALONE SHIELD # 21572, GENYA ALLEN SHIELD # 931457, and NYPD Officers JOHN and JANE DOE 1 through 10, individually and in their official capacities were police officers, detectives or supervisors employed by the NYPD. PLAINTIFF does not know the real names and shield / tax numbers of defendants John & Jane Doe 1 through 10.

5. That at all times hereinafter mentioned, the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

8. PLAINTIFF has complied with all conditions precedent to suit.

STATEMENT OF FACTS

9. On or about June 1, 2020, at or around 11:00 PM, PLAINTIFF was lawfully within the vicinity of 205 West 57th Street, New York, New York.

10. PLAINTIFF was walking in the vicinity of the above mentioned location on his way home from work, when several unidentified New York City Police Officers, including Defendants EDWARD MALONE SHIELD # 21572, GENYA ALLEN SHIELD # 931457, and the DOE defendants, approached PLAINTIFF.

11. The defendants officers wrongfully accused PLAINTIFF of breaking and entering into an electronic store in the vicinity.

12. PLAINTIFF told the officers that he never broke into the said store, and that he was on his way home that was located down the block where he resided with his two (2) minor children. PLAINTIFF also asked the officer to check the security cameras footage.

13. The defendants then placed PLAINTIFF into handcuffs and proceeded to check the footage, which, in fact, showed that PLAINTIFF did not commit any crimes or offenses.

14. Notwithstanding, the defendants placed PLAINTIFF into handcuffs and under arrest.

15. The defendants officers then unlawfully searched PLAINTIFF, despite the fact that they had no reasonable suspicion or other lawful basis to do so.

16. The defendants officers recovered no contraband from PLAINTIFF.

17. Thereafter, the defendants officers transported PLAINTIFF to the precinct.

18. While on route to the precinct, the defendants officers assured PLAINTIFF that he would be released soon because the security camera footage clearly showed that PLAINTIFF was not involved in the breaking and entering into the said store.

19. However, after the precinct PLAINTIFF was transported to the central bookings, where he remained for an extended period of time prior to being released.

20. While at the precinct, the defendants officers, including Defendants EDWARD MALONE SHIELD # 21572, GENYA ALLEN SHIELD # 931457, and the DOE defendants, falsely informed employees of the MANHATTAN County District Attorney's Office ("DA's Office") that they had observed PLAINTIFF commit various crimes/offenses.

21. Neither Defendants EDWARD MALONE SHIELD # 21572, GENYA ALLEN SHIELD # 931457, nor the DOE defendants observed PLAINTIFF violate any laws / ordinances.

22. On the contrary, the security camera footage that Defendants EDWARD MALONE SHIELD # 21572, GENYA ALLEN SHIELD # 931457, and the DOE defendants viewed on the scene of the incident clearly showed that PLAINTIFF was not involved in breaking and entering into the said store.

23. The allegations made by Defendants to the DA's Office were false, and the defendants knew them to be false at the time the defendants made the allegations.

24. The defendants then forwarded these false allegations to the DA's Office in order to justify the unlawful arrest of PLAINTIFF and to persuade the DA's Office to commence and/or continue the criminal prosecution of PLAINTIFF.

25. The defendants knew and understood that the DA's Office was relying on the truthfulness of defendants' claims and statements in order to evaluate whether to commence a criminal prosecution against the PLAINTIFF. Defendants were aware that the DA's Office assumed that all of the factual statements, claims and allegations that defendants relayed to the DA's Office were truthful in all material respects.

26. While at the precinct, PLAINTIFF requested medical attention on multiple occasions but his requests were denied by Defendants.

27. From the precinct, PLAINTIFF was then transported to Central Booking, and was subsequently arraigned.

28. After arraignment, PLAINTIFF was finally released from custody.

29. Upon release, PLAINTIFF lost his shelter unit, where he resided with his minor children, and was homeless for approximately one (1) week.

30. PLAINTIFF also required medical treatment for the injuries that he sustained as a result of defendants' false arrest, assault, and battery.

31. PLAINTIFF appeared in court as required, and his criminal case was dismissed on or about January 8, 2021.

32. PLAINTIFF suffered damage as a result of defendants' actions. PLAINTIFF was deprived of liberty, suffered emotional distress, homelessness, mental anguish, fear, pain, bodily injury, anxiety, embarrassment, humiliation, reputational damage, and lost wages.

CLAIM ONE
Under State and Federal Law
UNLAWFUL STOP, SEARCH, AND SEIZURE

33. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

34. As a result of the aforesaid conduct by defendants, PLAINTIFF's person and possessions were illegally stopped, searched, and seized without consent, a valid warrant, probable cause, reasonable suspicion, privilege or any other lawful basis, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States and New York State.

35. As a result of the aforesaid conduct by defendants, PLAINTIFF was subjected to an illegal, improper and false arrest by the defendants and caused to be falsely imprisoned, detained and confined. The aforesaid actions by the defendants constituted a deprivation of the PLAINTIFF's rights.

CLAIM TWO
Under State and Federal Law
FALSE ARREST

36. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

37. Defendant police officers arrested PLAINTIFF in the absence of probable cause and without a valid warrant.

38. As a result of the aforesaid conduct by defendants, PLAINTIFF was subjected to an illegal, improper and false arrest by the defendants and caused to be falsely imprisoned, detained and confined. The aforesaid actions by the defendants constituted a deprivation of the PLAINTIFF's rights.

CLAIM THREE
Under State and Federal Law
MALICIOUS ABUSE OF PROCESS

39. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

40. The individual defendants issued a legal process to place PLAINTIFF under arrest.

41. The Municipal Defendants arrested PLAINTIFF in order to obtain collateral objectives outside the legitimate ends of the legal process.

42. The Municipal Defendants acted with intent to do harm to PLAINTIFF without excuse or justification.

43. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained, *inter alia*, loss of liberty, loss of earnings, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, in addition to the damages hereinbefore alleged.

CLAIM FOUR

Under State and Federal Law
MALICIOUS PROSECUTION

44. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

45. By their conduct, as described herein, defendants are liable to PLAINTIFF for having committed malicious prosecution under the laws of the State of New York.

46. Defendants maliciously commenced criminal proceeding against PLAINTIFF, falsely accusing PLAINTIFF of violating the law.

47. Defendants falsely and without probable cause charged PLAINTIFF with violations of the laws of the State of New York.

48. The commencement and continuation of the criminal proceedings against PLAINTIFF was malicious and without probable cause.

49. All charges were terminated in PLAINTIFF's favor.

50. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of PLAINTIFF. Defendant City of New York, as an employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

51. As a direct and proximate result of the misconduct and abuse of authority stated above, PLAINTIFF sustained the damages alleged herein.

CLAIM FIVE
Under Federal Law
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL

52. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

53. Defendants created false evidence against PLAINTIFF.

54. Defendants forwarded false evidence and false information to prosecutors in the District Attorney's office.

55. Defendants misled the prosecutors by creating false evidence against PLAINTIFF and thereafter providing false testimony throughout the criminal proceedings.

56. In creating false evidence against PLAINTIFF, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated PLAINTIFF's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

57. As a result of the foregoing, PLAINTIFF's liberty was restricted for an extended period of time, was put in fear for PLAINTIFF'S safety, and was humiliated and subjected to handcuffing and other physical restraints without probable cause.

CLAIM SIX
Under Federal Law
FAILURE TO INTERVENE

58. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

59. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

60. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth And Fourteenth Amendments.

61. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

CLAIM SEVEN

Under State Law
ASSAULT and BATTERY

62. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

63. Defendants' aforementioned actions placed PLAINTIFF in apprehension of imminent harmful and offensive bodily contact.

64. Defendant police officers touched PLAINTIFF in a harmful and offensive manner.

65. Defendant police officers did so without privilege or consent from PLAINTIFF.

66. As a result of defendants' conduct, PLAINTIFF has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

CLAIM EIGHT
Under State Law
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

67. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

68. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

69. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

70. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

71. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to PLAINTIFF.

72. As a result of the aforementioned conduct, PLAINTIFF suffered severe emotional distress and physical and mental injury together with embarrassment, humiliation, shock, fright and loss of freedom.

CLAIM NINE
Under State Law
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

73. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

74. By reason of the foregoing, each Defendant was negligent in committing conduct that inflicted emotional distress upon PLAINTIFF.

75. The negligent infliction of emotional distress by these Defendants was unnecessary and unwarranted in the performance of their duties.

76. Defendant, their officers, agents, servants, and employees were responsible for the negligent infliction of emotional distress upon PLAINTIFF.

77. The Defendant employers CITY and NYPD are responsible for their wrongdoings of their employees and agents under the doctrine of *respondeat superior*.

78. As a direct and proximate result of the misconduct and abuse of authority detailed above, PLAINTIFF sustained the damages hereinbefore alleged.

CLAIM TEN
Under Federal Law
DEPRIVATION OF FEDERAL RIGHTS

79. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

80. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

81. All of the aforementioned acts deprived PLAINTIFF of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

82. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

83. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

84. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

CLAIM ELEVEN

Under Federal Law

DELIBERATE INDIFFERENCE TO SAFETY/MEDICAL NEEDS

85. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

86. The individual defendants were aware of a risk to PLAINTIFF's safety and a need for medical care and failed to act in deliberate indifference to PLAINTIFF's needs.

87. Accordingly, defendants violated the fourteenth amendment because they acted with deliberate indifference to PLAINTIFF's medical needs and safety.

88. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

CLAIM TWELVE
Under State Law
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

89. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

90. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

91. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

92. Due to the negligence of the defendants as set forth above, PLAINTIFF suffered physical and mental injury, pain and trauma, together with embarrassment, humiliation, shock, fright, and loss of freedom.

CLAIM THIRTEEN
Under Federal Law
MUNICIPAL LIABILITY

93. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

94. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

95. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. fabricating evidence in connection with their prosecution in order to cover up police misconduct;

96. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the PLAINTIFF.

97. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the PLAINTIFF as alleged herein.

98. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the PLAINTIFF as alleged herein.

99. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the PLAINTIFF's constitutional rights.

100. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the PLAINTIFF's constitutional rights.

101. The acts complained of deprived the PLAINTIFF of his right:

- A. Not to be deprived of liberty without due process of law;

- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and
- D. To receive equal protection under the law.

WHEREFORE, PLAINTIFF respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

DATED: New York, New York
February 24, 2022

Robert W. Georges

Robert W. Georges, Esq.
KONTA, GEORGES & BUZA, P.C.
233 Broadway, Ste. 900
York, New York 10279
Tel. (212) 710-5166